

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
PR - MARTINEZ-WAKEFIELD TAYLOR COURTHOUSE
COURT CALENDAR FOR MAY 28, 2026
DEPARTMENT 30
JUDICIAL OFFICER: MARK SCHMUCK

PROBATE EXAMINER NOTES-SUBJECT TO REVISION AFTER REVIEW
BY THE TEMPORARY JUDGE

Counsel and parties are encouraged to appear remotely through Zoom videoconferencing, **unless otherwise ordered by the Court.** Department 30 is open for in person appearances.

Please note the following information for your reference:

Zoom videoconferencing for Department 30:

[Court Calendars](#) | [Superior Court of California](#) | [County of Contra Costa](#)

IF YOU HAVE MATTERS IN BOTH
DEPARTMENT 30 AND DEPARTMENT 38,
PLEASE NOTIFY THE BAILIFFS
THE MORNING OF YOUR APPEARANCE.

THANK YOU.

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1A. **MSP18-01952 RE TORRIE D NUNNALLY FAMILY TRUST DT 2-22-17**
9:00 AM HEARING IN RE: PLAINTIFF'S MOTION FOR STAY FOR UNITED STATES DISTRICT COURT NORTHERN
CALIF JURISDICTION ON 10-17-25 BY PLAINTIFFS

Petitioners still must do the following:

1. Appear at the hearing
2. Have a Notice of Hearing mailed to all persons entitled to notice and file the completed Notice of Hearing
3. Submit a Proposed Order

Notes:

- a. Motion for Relief filed 04/20/26 by Christy Poon-Atkins, set 08/18/26
- b. Motion for Relief filed 05/04/26 by Christy Poon-Atkins, set 09/01/26

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1B. **MSP18-01952 RE TORRIE D NUNNALLY FAMILY TRUST DT 2-22-17**
9:00 AM HEARING IN RE: PLAINTIFF'S MOTION TO STRIKE DEFS. OPPOSITION TO PLAINTIFF MOTION FILED ON
3-2-25 BY CHRISTY POON-ATKINS

Petitioner still must do the following:

1. Appear at the hearing
2. Have a copy of the Motion and Notice of Hearing mailed to all persons entitled to notice and filed the completed Notice with the Court.
3. Submit a Proposed Order

Notes:

- a. Order from District Court of Appeal filed 10-14-2025.

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1C. **MSP18-01952 RE TORRIE D NUNNALLY FAMILY TRUST DT 2-22-17**
9:00 AM HEARING IN RE: MOTION FOR RELIEF FROM SUPERIOR COURT ORDER ON APPEAL FILED 9/20/24 BY
CHRISTY POON-ATKINS

Petitioner still must do the following:

1. Appear at the hearing
2. Have a Judicial Council Form Notice of Hearing and copy of petition mailed to all persons entitled to receive notice and file a Proof of Service with court.
3. Submit a proposed Order

Notes:

- a. Notice of Appeal filed 9-16-2024.
- b. Opposition filed by John Poon and David Poon 02/19/2024.

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1D. **MSP18-01952 RE TORRIE D NUNNALLY FAMILY TRUST DT 2-22-17**
9:00 AM HEARING IN RE: MOTION FOR STAY FOR FIRST APPELLATE DISTRICT JURISDICTION FILED ON 10/07/24
BY CHRISTY POON-ATKINS

Petitioner still must do the following:

1. Appear at the hearing
2. Have a copy of the Motion and Notice of Hearing mailed to all persons entitled to notice and filed the completed Notice with the Court.
3. Submit a Proposed Order

Note: Opposition filed by John Poon and David Poon 02/20/2025.

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5. 9:00 AM	MSP21-00544 CONS OF CHRISTINA PEREZ HEARING IN RE: THIRD ACCOUNT AND FOURTH/FINAL ACCOUNT AND REPORT; PETITION FOR DISCHARGE FILED ON 03/03/26 BY KELLIE ANN HAYES Need appearances
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6. 9:00 AM	MSP22-00315 THE PEREZ FAMILY TRUST DATED 06/09/1993 HEARING IN RE: SECOND ACCOUNT AND REPORT AND PETITION FOR SETTLEMENT AND ALLOWANCE OF FIDUCIARY FEES FILED ON 03/03/26 BY KELLIE ANN HAYES
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Need appearances

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7.

9:00 AM

P23-01203 ESTATE OF: LENWOOD PRICE, JR.

HEARING IN RE: PETITION FOR FIRST AND FINAL ACCOUNT; REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT; FOR AWARD OF ATTORNEY'S FEES; FOR ADMINISTRATOR'S COMMISSION; FOR REIMBURSEMENT TO ADMINISTRATOR AND ATTORNEY; AND FOR FINAL DISTRIBUTION FILED ON 12-1-25 BY HORACE BAZILLE JR

Need:

1. Appearances

Note: ¶ 11 at page 3 states Alexander Gray is not entitled to inherit.

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8A. 9:00 AM	P23-01305 CONSERVATORSHIP OF: FRANCIS OPELSKI HEARING ON PETITION IN RE: SUSPENSION AND/OR REMOVAL OF ERIC OPELSKI AS PERSONAL REPRESENTATIVE FILED BY LOUISE DELGADO - STATUS REVIEW AFTER SUSPENSION
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Need appearances

8B. 9:00 AM	P23-01305 CONSERVATORSHIP OF: FRANCIS OPELSKI HEARING IN RE: ORDER TO SHOW CAUSE WHY COURT SHOULD NOT REMOVE ERIC OPELSKI AS PERSONAL REPRESENTATIVE AND/OR IMPOSE SANCTIONS FOR FAILURE TO APPEAR IN COURT ON 1/22/26
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Need appearance by Eric Opelski

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10.

9:00 AM

P23-01914

ESTATE OF: MAXINE OOSTERBAAN

HEARING IN RE: FIRST ACCOUNT CURRENT & REPORT OF ADMINISTRATOR & PETITION FOR ITS SETTLEMENT & DISTRIBUTION OF ESTATE ASSETS FILED ON 10-15-25 BY ROBIN OOSTERBAAN

Petitioner still must do the following:

1. Appear at the hearing
2. File a verified declaration to provide a Summary of Account that complies with PrC § 1061(b). Accounting must begin with values as reported in Inventory & Appraisal. The final corrected inventory and appraisal filed 11/10/25 shows a value of \$1,142,205.00
3. File a verified declaration to specify plan of distribution, including approximate amount of cash and number of shares of each security to be distributed to each beneficiary. LR 7.307(a)
4. File a verified declaration to specify whether all charges for legal advertising, probate referee's services and costs of administration have been paid. LR 7.317
5. File a verified declaration to include a detailed list of all property to be distributed, including statement of amount of cash on hand. LR 7.301(a)
6. File a verified declaration to show calculation of statutory fee base as required by CRC § 7.705. Specifically, must state any loss on sale as relates to maximum statutory fees allowable.
7. Submit a Proposed Order

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11. 9:00 AM	P24-00692 ESTATE OF: BRIAN GARLINGTON ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION AGAINST LIENHOLDER FROM ENFORCING LIEN AGAINST REAL PROPERTY AT 1040 MOHR LANE, UNIT C, CONCORD, FILED ON 8-1-25 BY KATHRYN CAREY
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Need appearances to report status, including from Newrez LLC dba Shellpoint
Mortgage and National Default Servicing Corporation

Note: Letters of Administration issued to Kathryn Carey 10-14-2025.

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12. 9:00 AM	P24-01640 PETITION FOR FINANCIAL ELDER ABUSE; CONVERSION; UNDUE INFLUENCE; RETURN OF TRUST PROPERTY; ATTORNEYS' FEES AND COSTS FILED ON 09/16/24 BY ERIC T. LARSEN	MATTER OF: THE STEPHEN T. LARSEN REVOCABLE TRUST
	Need:	
		1. Appearances to report status, including mediation 2. Proof of mailing Judicial Council Form Notice of Hearing to trust beneficiaries. PrC § 17203 3. Proposed Order
	Notes:	
		a. Objection filed 04/04/25 by Maria Anjos (Santos) Larsen, Julien Chase Santos, and Justin Trent Santos.

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13.

9:00 AM

P24-01812

ESTATE OF: JOAN ALBERS

STATUS REVIEW RE FILING OF FORM MC-356 RE BLOCKED ACCOUNT

Need:

1. Appearances to report status of blocked account
2. Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account Form MC-356 filed

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14.	P25-01608	MATTER OF: DARIN ROTHER AND MICHAEL ROTHER AS DESIGNATED TRUSTEES AND BENEFICIARIES OF THE LIESELOTTE ROTHER REVOCABLE TRUST DATED AUGUST 30, 2024
9:00 AM	PETITION TO REMOVE TRUSTEE AND APPOINT SUCCESSOR TRUSTEE, FOR AN ACCOUNTING BY ACTING TRUSTEE, PETITION TO SURCHARGE ACTING TRUSTEE AND STATING A CAUSE OF ACTION FOR FINANCIAL ELDER ABUSE AND BREACH OF FIDUCIARY DUTY FILED ON 09/08/25 BY DARIN ROTHER AND MICHAEL ROTHER - RETURN FROM BRESLIN MEDIATION	
	Need: 1. Appearances to report status, including mediation 2. Proof of mailing Judicial Council Form Notice of Hearing to all persons entitled to receive notice. PrC § 17203	
	Notes: a. Motion to Preclude Regina Ruiz From Using Trust Assets to Pay Attorney's Fees, Order an Accounting of All sums Paid for Fees, and Return That Sum to the Trust filed 04/23/26 by Darin Rother and Michael Rother, set 08/20/26	

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15. **P25-02022** **MATTER OF: THE EDWIN C. STREET 1972 TRUST DATED FEBRUARY 21, 1972**
9:00 AM PETITION FOR ORDER: ~~1) REMOVAL OF CO-TRUSTEE BRIAN ROSE; 2) SUSPENSION OF CO-TRUSTEE BRIAN ROSE; 3) FOR SURCHARGE; 4) BARRING RESPONDENT BRIAN ROSE FROM USING TRUST FUNDS FOR LITIGATION FILED ON 11/06/25 BY COLLEEN JOHN~~ PETITION MODIFYING TERMS; APPROVING DISTRIBUTION AGREEMENT; AUTHORIZING RESERVE, AND TERMINATING TRUST FILED 11/10/2025 BY MECHANICS BANK

Need:

1. Appearances
2. Verified declaration to state the current addresses of all persons entitled to notice, so that Court can confirm service
3. Revised Proposed Order to include list of assets on hand available for distribution and plan of distribution including approximate amount of cash to be distributed to each beneficiary. LR 7.307(a); 7.101